

25STCV12900 25STCV12900

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-13

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Case Number: 25STCV12900 Hearing Date: July 13, 2026 Dept: 512

HEARING DATE: Mon., July 13, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Mechammil

v. City of Los Angeles COMP.

FILED: 05-02-25

CASE NUMBER: 25STCV12900 FAC FILED: 11-04-25

NOTICE: OK SAC FILED: 03-04-26

PROCEEDINGS: DEMURRER

TO THE SECOND AMENDED COMPLAINT AND MOTION TO STRIKE

MOVING PARTY: Defendant

City of Los Angeles, acting by and through the Los Angeles Department of Water and Power

RESP. PARTY: Plaintiff Gholwan Mechammil

DEMURRER WITH MOTION TO STRIKE;

(CCP §§ 430.10, et seq.; 435; 436)

TENTATIVE RULING:

Defendant City of Los Angeles, acting

by and through the Los Angeles Department of Water and Power's Demurrer to

Plaintiff's Second Amended Complaint is OVERRULED in part and SUSTAINED in

part.

The Demurrer is OVERRULED as to the
first and fourth causes of action.

The Demurrer is SUSTAINED WITHOUT
LEAVE TO AMEND as to the second cause of action.

The Demurrer is SUSTAINED WITH LEAVE
TO AMEND as to the third cause of action.

Plaintiff's Third Amended Complaint is
to be filed within 20 days of this order.

Defendant's Motion to Strike Portions
of Plaintiff's Second Amended Complaint is DENIED.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 29, 2026 ☐ Late ☐ None

REPLY: Filed
on July 6, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On May 2, 2025, Plaintiff Gholwan Mechammil ("Plaintiff") filed a complaint against Defendant City of Los Angeles, acting by and through the Los Angeles Department of Water and Power ("Defendant") and Does 1-50.

On October 6, 2025, the Court granted Defendant's Motion for Judgment on the Pleadings. (10/6/25 Order.)

On November 4, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendant.

On February 2, 2026, the Court sustained Defendant's Demurrer to the second, third, and fourth causes of action in the FAC with leave to amend and overruled the Demurrer to the remaining cause of action. (2/2/26 Order.) The Court also granted Defendant's Motion to Strike Plaintiff's request for economic damages. (2/2/26 Order.)

On March 4, 2026, Plaintiff filed a Second Amended Complaint ("SAC") against Defendant and Does 1-50, alleging causes of action for Negligence, Breach of Written Contract, Breach of Oral Contract, and Negligent Interference with Prospective Economic Relations.

On April 10, 2026, Defendant filed the instant Demurrer to Plaintiff's SAC (the "Demurrer") and Motion to Strike Portions of Plaintiff's SAC (the "Motion").

On June 29, 2026, Plaintiff filed an Opposition to the Demurrer and an Opposition to the Motion.

On July 6, 2026, Defendant filed a Reply regarding the Demurrer and a Reply regarding the Motion.

II.

Request
for Judicial Notice

In conjunction with the Demurrer,
Defendant requests the Court take judicial notice of certain ordinances amending
Article 1, Chapter 1, Division 10 of the Los Angeles Administrative Code.
(Demurrer, RJN, pp. 1-2, Exhs. 1-2.)

The Court GRANTS the request. (Evid.
Code, § 452, subd. (b); see also *Madain v. City of Stanton* (2010) 185
Cal.App.4th 1277, 1280, fn. 1.)

III.
Legal
Standard

“As a general matter, in a
demurrer proceeding, the defects must be apparent on the face of the pleading
or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.*
(2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone,
and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants,*
Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes
the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*)
The only issue a demurrer is concerned with is whether the complaint, as it
stands, states a cause of action. (*Hahn v. Mirda* (2007) 147
Cal.App.4th 740, 747.)

A general demurrer may be
brought under Code of Civil Procedure section 430.10, subdivision (e) if
insufficient facts are stated to support the cause of action asserted or under
section 430.10, subdivision (a), where the court has no jurisdiction of the subject
of the cause of action alleged in the pleading. All other grounds listed in
Section 430.10, including uncertainty under subdivision (f), are special
demurrers.

Where a demurrer is
sustained, leave to amend must be allowed where there is a reasonable
possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18
Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a
pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015)
244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility
that the plaintiff can state a good cause of action, it is error to sustain a
demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.*

(1969) 70 Cal.2d 240, 245).

IV.

Discussion

A. Demurrer

Meet and Confer

Code of Civil Procedure

section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). According to the declaration, defense counsel and Plaintiff’s counsel met and conferred by Teams videoconference regarding the issues raised in the Demurrer but were unable to reach a resolution. (Demurrer, Hsu Decl., ¶ 2.)

Given the circumstances, the Court finds the meet and confer requirement is satisfied.

Analysis

Defendant demurs to all four causes of action in the SAC on the grounds the claim of breach of written contract fails because it is premised on contractual obligations that do not exist; the claim for breach of oral contract fails as it exceeds the scope of the Court’s prior order and is unenforceable as it does not comply with the city charter; the claim for negligent interference with prospective economic advantage fails as the SAC fails to plead the essential elements for this claim; and the claim for

negligence fails because it hinges on a defective vicarious liability theory. (Demurrer, pp. 6, 10-18.) Defendant requests leave to amend be denied as Plaintiff “has already had three bites at the apple, and this Court should not give him a fourth.” (Demurrer, p. 19.)

In Opposition, Plaintiff states the SAC sufficiently alleges each cause of action on the following grounds: SAC ¶ 64 provides for an enforceable written agreement between the parties that sufficiently pleads the breach of written contract claim; the claim for breach of oral contract does not exceed the scope of the Court’s order and SAC ¶ 75 provides adequate facts to state the claim; the claim for negligent interference with prospective economic relations is adequately pled in the SAC, particularly in SAC ¶¶ 27, 101, and 103; and the claim for negligence was previously found to be adequate by the Court. (Opp., pp. 8-19.) To the extent the Court finds the SAC deficient, Plaintiff requests leave to amend. (Opp., pp. 19.)

In Reply, Defendant emphasizes arguments raised in the Demurrer and states the Opposition fails to demonstrate that any of the causes of action in the SAC are adequately pled. (Reply, pp. 1-4.) Further, Defendant states that the Court’s prior ruling to overrule Defendant’s challenge to the negligence cause of action is superseded by the SAC and thus Defendant is within its rights to demur to the negligence claim. (Reply, pp. 5-7.) Finally, Defendant urges that Plaintiff has failed to meet the burden to show what facts could be pled to cure the defects in the SAC. (Reply, pp. 7-8.)

First

Cause of Action – Negligence

“The elements of a negligence cause of action are duty, breach, causation and damages.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

Government Code section 815.2 states, in pertinent part: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).)

Here, Plaintiff

refers to Government Code section 815.2 (SAC, ¶ 35) and alleges that “[f]rom January 21, 2021 to October 1, 2024, Defendant LADWP, including, but not limited to its employee, Mark Navarro, unreasonably delayed, made mistakes and failed to complete within any reasonable time the design, construction, installation, maintenance, repair, replacement, calibration and improvement for the Subject Property.” (SAC, ¶ 46.) Further, Plaintiff alleges that Defendants “breached their duty of care by failing to exercise reasonable diligence and competence in the execution and completion of its responsibilities.” (SAC, ¶ 45.) Plaintiff also alleges: “The negligence of LADWP, as well as its employees, including, but not limited to, Mark Navarro, Roberto Jae Park, Jim Granados, Vasile Boboaca, Alvaro Escobar, Farhad Dormani, Mike Aguilar, Eric Maglasang, Rodolfo Monroy, Daniel Chavez and agents identified here as DOES 1-50, was a substantial factor causing Plaintiffs’ damages.” (SAC, ¶ 48.)

The Court finds these allegations are sufficient to allege a cause of action for negligence.

Thus, the Demurrer is OVERRULED as to the first cause of action.

Second and Third Causes of Action – Breach of Contract

A cause of action for breach of contract must plead “(1) the contract, (2) plaintiff’s performance or excuse for non-performance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.” (*Acoustics, Inc. v. Trepte Constr. Co.* (1971) 14 Cal.App.3d 887, 913.) A written contract can be pled by alleging its making and attaching a copy to the complaint or by alleging the making and the substance of the relevant terms. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.) The terms of an “oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (*Scolinos v. Kolts* (1995) 37 Cal.App.4th 635, 640.) Finally, an implied-in-fact contract can be alleged based on the promisor’s conduct. (*Gomez v. Lincare, Inc.* (2009) 173 Cal.App.4th 508, 525.)

As to

the second cause of action for breach of written contract, the Court finds the SAC alleges that a document entitled "Authority to Bill for Conduit Construction and Permit Fees" constitutes a written agreement between the parties. (SAC, ¶ 59.) A copy of the document is attached to the SAC. (SAC, ¶ 60, Exh. 1.) Plaintiff alleges that the document also incorporates by reference the Rules Governing Water and Electric Services through the following provision: "In consideration of the work and materials used for electric facilities... the undersigned hereby agrees to pay the LADWP, in accordance with the Rules Governing Water and Electric Services in the City of Los Angeles, the sum of \$16,099.00." (SAC, ¶ 61, Exh. 1.) The SAC then alleges that Defendant breached the Rules Governing Water and Electric Services. (SAC, ¶¶ 64-72, Exh. 2.)

The Court finds the written agreement referenced in and accompanying the SAC merely contains an agreement for Plaintiff to pay Defendant a specific amount in accordance with the Rules Governing Water and Electric Services and does not otherwise obligate by reference Defendant to comport with the Rules Governing Water and Electric Services. As such, the SAC fails to state sufficient facts to constitute the second cause of action.

Thus, the Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the second cause of action. Leave to amend is not granted given that this is Plaintiff's third attempt to allege this cause of action, and the Opposition fails to show Plaintiff has facts to plead this cause of action.

As to the third cause of action for breach of oral contract, the Court first finds this cause of action was not beyond the scope of the Court's prior order. Turning to the SAC's allegations regarding the second cause of action, the SAC alleges that Defendant's employees made oral promises to complete the electrical power installation for the Property within 3-6 months of the following dates while speaking with Plaintiff and Plaintiff's property manager: January 21, 2021; February 23, 2021; January 10, 2022; March 10, 2022; April 12, 2022; April 20, 2022; April 21, 2022; May 25, 2022; and October 3, 2022 (SAC, ¶¶ 78-79), and Defendant's employees made oral promises to complete the electric power lines within 30 days of the following dates while speaking with Plaintiff and Plaintiff's property manager: January 29, 2023; March 28, 2023; April 5, 2023; April 17, 2023; July 25, 2023; August 26, 2023; December 14, 2023; and March 8,

2024. (SAC, ¶¶ 78, 80.) Plaintiff

performed all terms and conditions of the agreement, including paying Defendant, but Defendant breached the agreement by failing to timely perform the work as promised. (SAC, ¶¶ 82-85.) As a direct result of breach, Plaintiff has suffered damages in no event less than \$1,121,632.32. (SAC, ¶ 87.)

The

Court finds that the oral agreement directly contradicts the properly judicially noticed Los Angeles Administrative Code, Chapter 1, Article 1, Section 10.2, subdivision (a)(4), which states that contracts with consideration reasonably valued at more than \$25,000, annually or in the aggregate, are required to be in writing. (Demurrer, RJN, Exhs. 1-2.) The SAC alleges that the contract between the parties was reasonably valued at more than \$25,000 but was not in writing. As such, the Court finds the SAC fails to state sufficient facts to constitute the third cause of action. Plaintiff does not provide any argument or evidence to dispute the SAC's pleaded violation of the pertinent Los Angeles Administrative Code.

Thus,

the Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the third cause of action.

Fourth

Cause of Action – Negligent Interference with Prospective Economic Relations

“The elements of

negligent interference with prospective economic advantage are (1) the existence of an economic relationship between the plaintiff and a third party containing the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) the defendant's knowledge (actual or construed) that the relationship would be disrupted if the defendant failed to act with reasonable care; (4) the defendant's failure to act with reasonable care; (5) actual disruption of the relationship; (6) and economic harm proximately caused by the defendant's negligence.” (Redfearn v. Trader Joe's Co. (2018) 20 Cal.App.5th 989, 1005, overruled in part on other grounds; see CACI No. 2204.) A cause of action for negligent interference with prospective economic relations also requires the defendant engaged in wrongful conduct. (See CACI No. 2204; National Medical Transportation Network v. Deloitte & Touche (1998) 62 Cal.App.4th 412, 440.)

Here, the

SAC alleges the existence of an economic relationship between Plaintiff and the third party tenants at the subject property; Defendant's knowledge of the relationship; Defendant's construed knowledge that the relationship would be disrupted if Defendant failed to act with reasonable care regarding the electrical power installation at the Property; Defendant's failure to act with reasonable care and the resulting disruption of Plaintiff's relationship with the third party tenants as Plaintiff was prevented from leasing the Property; and economic harm caused by Defendant's negligence. (SAC, ¶¶ 88-114.) Further, the Court finds the SAC alleges the specific wrongful conduct of fraud or misrepresentation on behalf of Defendant's employees regarding the status of the installation and the timeline to completion of the repairs. (See CACI No. 2204.)

The Court finds these allegations suffice to plead a cause of action for negligent interference with prospective economic relations.

Thus, the Demurrer is OVERRULED as to the fourth cause of action.

B. Motion to Strike

Defendant moves to strike the irrelevant, false, or improper matter from the SAC – namely, portions of SAC ¶ 49 and ¶ 54 that reference economic damages and depreciation of value of the Property.

Legal Authority

California law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).)

The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. §

436.)

Finally, Code of Civil Procedure

section 435.5 requires that “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a).) (Emphasis added.)

Meet and Confer

As an initial matter, the Court finds

Defendant has satisfied the meet and confer requirement of Code of Civil Procedure section 435.5, as defense counsel filed a declaration attesting that the parties’ counsels met and conferred via Teams videoconferencing regarding the issues raised in the Motion but were unable to arrive at a resolution. (Motion, Hsu Decl., ¶ 2.)

Analysis

Here, the Court finds the SAC

adequately pleads a cause of action for negligent interference with prospective economic relations, which allows for economic recovery. As such, Defendant’s request to strike references to economic damages and depreciation of value of the subject Property on the grounds that the SAC fails to sufficiently plead facts to support these requests is meritless.

Thus, the Motion is DENIED.

IV.

Conclusion

& Order

For the foregoing reasons, Defendant

City of Los Angeles, acting by and through the Los Angeles Department of Water and Power’s Demurrer to Plaintiff’s Second Amended Complaint is OVERRULED in part and SUSTAINED in part.

The Demurrer is OVERRULED as to the

first and fourth causes of action.

The Demurrer is SUSTAINED WITHOUT
LEAVE TO AMEND as to the second cause of action.

The Demurrer is SUSTAINED WITH LEAVE
TO AMEND as to the third cause of action.

Defendant's Motion to Strike Portions
of Plaintiff's Second Amended Complaint is DENIED.

Plaintiff's Third Amended Complaint is
to be filed within 20 days of this order.

Moving party is ordered to
give notice.